

IT Staffing and Managed Services Agreement

Contract No. NSS-2025-0112 | Effective Date: March 1, 2025

Vendor: NexStaff Solutions LLP, Plot 22, Whitefield, Bengaluru 560066

Client: Axiom Financial Services Ltd., Tower B, DLF Cyber City, Gurgaon 122002

Contract Value: INR 1,20,00,000 per annum

Term: 12 months with option to extend

1. Scope of Services

1.1 NexStaff shall provide Axiom with a dedicated team of 8 software engineers, 2 QA analysts, and 1 project manager (collectively 'Deployed Personnel') to work on Axiom's core banking modernisation project.

1.2 All Deployed Personnel shall work exclusively for Axiom during the Term and shall not be engaged on competing assignments.

1.3 NexStaff retains the right to replace any Deployed Personnel with equivalent-qualified resources with 5 business days notice.

2. Fees and Invoicing

2.1 Axiom shall pay NexStaff monthly fees of INR 10,00,000, invoiced on the 1st of each month and payable within 30 days.

2.2 NexStaff may revise individual resource rates with 30 days written notice, provided that aggregate annual cost increase does not exceed 12%.

2.3 Axiom shall reimburse all pre-approved travel and accommodation expenses within 15 days of submission.

3. Indemnification and Liability

3.1 NexStaff shall indemnify Axiom against any claims, losses, damages, or expenses arising from the negligence or wilful misconduct of Deployed Personnel.

3.2 Axiom shall indemnify NexStaff against any claims arising from Axiom's instructions, specifications, or direction given to Deployed Personnel.

3.3 Notwithstanding any other provision, NexStaff's liability to Axiom for any cause whatsoever, including gross negligence, shall be unlimited.

Clause 3.3 — Unlimited liability exposure: NexStaff has accepted unlimited liability. While this protects Axiom, this clause is atypical and NexStaff may seek to renegotiate at renewal. Verify vendor financial capacity to honour claims.

4. Intellectual Property

4.1 All work product, code, documentation, and deliverables created by Deployed Personnel in the course of their engagement ('Work Product') shall be owned solely by Axiom upon creation.

4.2 NexStaff assigns to Axiom all intellectual property rights in Work Product, including copyright, patents, and trade secrets.

4.3 NexStaff warrants that Work Product shall not infringe any third-party intellectual property rights.

5. Confidentiality

5.1 NexStaff and all Deployed Personnel shall maintain strict confidentiality of Axiom's business information, customer data, and technical architecture.

5.2 Confidentiality obligations shall survive termination of this Agreement for a period of 5 years.

5.3 NexStaff shall ensure all Deployed Personnel execute individual Non-Disclosure Agreements prior to commencement.

6. Termination

6.1 Either party may terminate this Agreement with 30 days written notice.

6.2 Axiom may terminate immediately for cause, including material breach, misconduct of Deployed Personnel, or insolvency of NexStaff.

6.3 Upon termination, NexStaff shall facilitate knowledge transfer for a period of up to 30 days at no additional charge.

7. Non-Solicitation

7.1 During the Term and for 12 months thereafter, Axiom shall not directly solicit, recruit, or hire any Deployed Personnel.

7.2 In the event of breach of Clause 7.1, Axiom shall pay NexStaff a recruitment fee equal to 20% of the annual cost-to-company of the hired individual.

Clause 7.2 — Non-solicitation penalty: 20% of annual CTC as a buy-out fee. At current salary levels this could amount to INR 4–8 lakh per employee hired directly.